



POLICE DEPARTMENT

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Jose Joseph
Tax Registry No. 943113
Transit District 3
Disciplinary Case No. 2012-8604

The above-named member of the Department appeared before me on May 5, 2014, November 25, 2014, February 9, 2015 and March 20, 2015, charged with the following:

1. Said Police Officer Jose Joseph, while assigned to the Transit District 3 Command, while off-duty, on or about June 16, 2011, engaged in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: said Officer was present at the scene of a physical dispute between two or more individuals known to the Department which necessitated a police response and said Officer failed to identify himself as a member of the New York City Police Department to the responding officers.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

2. Said Police Officer Jose Joseph, while assigned to the Transit District 3 Command, while off-duty, on or about June 16, 2011, engaged in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: said Officer was present at the scene of a physical dispute between two or more individuals known to the Department which necessitated a police response, and said Officer having knowledge of what occurred during the incident, failed to inform the responding officers what he observed.

P.G. 203-10, Page 1, Paragraph 5 PROHIBITED CONDUCT

3. Said Police Officer Jose Joseph, while assigned to the Transit District 3 Command, while off-duty, on or about June 16, 2011, after being involved in an unusual police occurrence, did fail and neglect to request the response of the patrol supervisor, precinct of occurrence, as required.

P.G. 212-32, Page 1, Paragraph 1 – OFF DUTY INCIDENTS INVOLVING
UNIFORMED MEMBERS OF THE
SERVICE

4. Said Police Officer Jose Joseph, while assigned to the Transit District 3 Command, on or about November 28, 2012, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit; said Police Officer provided misleading statements during the course of an official Department interview. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

The Department was represented by Marissa B. Gillespie, Esq. and Jordan Farnham, Esq., Respondent was represented by John Tynan, Esq.

Respondent through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of all four Specifications.

FINDINGS AND ANALYSIS

The following is a summary of the facts as supported by video footage of the incident entered into evidence by the Department. (DX1). At approximately 1900 hours on June 16, 2011, Milagros Blanco was returning home to her apartment building at [REDACTED] [REDACTED]. Respondent was among a group of individuals that was seated outside on the sidewalk next to the building's front gate. As Blanco approached the gate, Person A, Respondent's girlfriend, walked forward and stood in front of

her, preventing her from entering the building. A verbal dispute ensued between Blanco and Person A, at which point Person A grabbed Blanco's keys from her hands. Respondent stood up and pulled Person A away from Blanco. The verbal dispute continued and Respondent walked away. Shortly thereafter, Respondent returned and again pulled Person A back from Blanco. The dispute continued as Blanco stood in the doorway on her cell phone, during which time Person B, Person A's sister, exited the building. Person B then grabbed Blanco and pushed her through doorway into the vestibule. As Person B attempted to advance further toward Blanco, Person C, Person B's boyfriend, and Respondent pulled her back and closed the gate. Shortly thereafter, Person C opened the gate, allowing Person B to advance inside toward Blanco, who was standing just on the other side. At which point, Person B, Person A, and Person C entered through the gate and Blanco was assaulted inside the vestibule. Blanco discharged a canister of mace that was attached to her keychain, striking Person B and Person C, thereby ending the confrontation. Blanco was subsequently placed under arrest and charged with [REDACTED]

Specification No. 1

Respondent is charged with failing to identify himself as a member of the service to the officers that responded [REDACTED] after being present at the scene of the physical dispute between Blanco, Person A, Person B, and Person C. Respondent denied being present for any part of the physical dispute and claimed that he was therefore not required to identify himself as a member of the service to the responding officers.

Blanco testified at trial regarding what happened on June 16, 2011. Her version of events is corroborated by the video footage entered into evidence by the Department. (DX1). Specifically, Blanco testified that Respondent was present at the scene but left when she was thrown to the ground by Person B. (Tr. 53). As a result of the assault, Blanco sustained a broken pelvis and filed a wrongful arrest lawsuit against the City, for which she received a \$9,000 settlement. (Tr. 37, 51).

Respondent testified on direct examination that [REDACTED] Person A, was involved in a verbal dispute with Blanco outside her apartment building. After repeatedly asking Person A to stop and being unsuccessful, he decided to walk away from the situation. Respondent testified that he got in his car and drove. Sometime later, Respondent returned to the scene and noticed a number of police cars and an ambulance in front of the building. (Tr. 192-93). Respondent looked into the ambulance and saw Person B and Person C, seated inside being treated for exposure to mace. As he approached, Blanco was being placed into an RMP. (Tr. 194).

On cross-examination Respondent was confronted with video footage of the incident contradicting his prior testimony. Specifically, Respondent was confronted with footage showing him remaining at the scene of the incident for longer than he admitted to by returning to the scene earlier. (Tr. 232). He admitted that he witnessed the dispute escalate from a verbal argument to a physical dispute when Person A grabbed Blanco's keys from her hands. (Tr. 209). Once he saw Person A grab the keys and throw them down, he got up from his chair and pulled her away from Blanco. (Tr. 211). Respondent testified that he did, in fact, also pull Person B back away from Blanco shortly thereafter. (Tr. 216). According to Respondent, he later saw Person B go after Blanco.

but then he "had a blackout, maybe." (Tr. 239). Respondent admitted that up until that point the situation had escalated. Respondent admitted to being at the scene when Persons A, B and C then entered the building's vestibule, but denied being there when Blanco was assaulted. (Tr. 220). Respondent testified that he left the scene of the incident when he saw Person B and Person A run into the vestibule because he felt both women were "being unreasonable," but he did not think they were going to do anything. (Tr. 221). Respondent left the scene for approximately ten minutes before returning. (Tr. 228).

Respondent's reasoning for why he left the scene of the incident was inconsistent. Respondent first argued that he pulled Person A away from Blanco, and after doing so he did not think that anything else was going to happen. (Tr. 212-13). However, after being confronted with the video footage, he said:

"...I was trying my best from the get-go, since the beginning, to stop anything from happening. And nobody was paying mind to what I was saying. I even came out and tried to – tried to intervene to prevent people from getting – people from getting close to each other. I tried my best. But, unfortunately, at the time that's what happened in my mind, was just to go." (Tr. 239).

It is clear that Respondent did not think the situation had deescalated. Instead, he admitted that the situation had escalated to a point at which he did not feel he could control it anymore and chose to leave, rather than call 911 to request assistance. In fact, upon seeing Person B go after Blanco inside the vestibule, he can be seen throwing his hands up and willfully choosing to leave the situation.

According to Respondent, he was approached by Lieutenant Giblin after the lieutenant noticed a knife clipped to Respondent's pocket. Giblin then asked Respondent for his ID. Respondent testified that he identified himself as a police officer,

showed Giblin his ID, and the interaction between the two ended. (Tr. 195). It should be noted that this encounter cannot be seen in the video footage because according to Respondent it occurred on the street. Sergeant Karen Irvin testified that she was with Giblin for most of the time at the scene and did not see anybody approach him to identify himself as a member of the service. (Tr. 140). Respondent's version of the encounter with Giblin was self-serving and convenient in that it supposedly occurred outside of view of the video footage. However, even if Respondent did identify himself as a member of the service to Giblin, he failed to inform the lieutenant that he was present at the scene of the incident earlier and was aware of information that would have aided the investigation.

This Court found Respondent's testimony at trial to be self-serving and misleading. It is unclear why Respondent continued to withhold important pieces of information regarding the incident despite having seen video footage of the incident. The footage speaks for itself and clearly tells the story of what happened that evening. Even if this Court credits Respondent's testimony that he did not see the final stage of the assault against Blanco during which she sustained a broken pelvis, he was certainly present when the dispute became physical.

In conclusion, this Court finds that the Department proved by a preponderance of the evidence that Respondent was present at the scene of the physical dispute between Blanco, Person A, Person B, and Person C and did fail to identify himself as a member of the service to responding officers on the scene. Accordingly, Respondent is found Guilty of Specification No. 1.

Specification No. 2

Respondent is charged with, having knowledge of what occurred during the incident, failing to inform the responding officers what he observed. Lieutenant Michael Lee, Sergeant Karen Irvin, Detective Hector Yanguas and Officers Frank Monge, Fabrizio Randazzo, Tommy Keung, and Michael DeMarco, all testified that they responded to the scene at [REDACTED] All testified that they were not aware that an off-duty member of the service was present at the scene and nobody approached them to identify himself or herself as a witness to the incident. (Tr. 174, 140, 96, 104, 112, 156, 169).

Respondent argued that he did not see Blanco get thrown to the ground or the subsequent discharge of mace, so he therefore did not have knowledge of what occurred during the incident. (Tr. 223-27). Respondent's claim is based on the notion that the incident consisted solely of the assault inside the vestibule. However, it is clear that those final moments of the dispute were just a portion of the incident. Respondent was present for the initial verbal argument, which was admittedly instigated by his girlfriend, Person A, as well as the first assault on Blanco by Person B in the doorway. Respondent testified that he did not think the information he was personally aware of regarding the incident was important, a claim that is wildly incredible, particularly in light of Respondent's position and training as a police officer. (Tr. 227).

Respondent further testified that the responding officers had ascertained what had happened "long before" he arrived back on the scene, a claim that appears to be an attempt to bolster Respondent's assertion that his personal knowledge of the incident was inconsequential. (Tr. 226). According to Respondent, Blanco "was already in [...]"

handcuffs and she was being put in the RMP when [he] got there.” (Tr. 226). However, when confronted with video footage of the incident, Respondent admitted that Blanco was on the sidewalk talking to the responding officers for a period of time as Respondent looked on before being placed under arrest and brought to the RMP. (Tr. 235-36).

Additionally, Respondent claimed to have been approached by Lieutenant Giblin at that scene. If that was the case, Respondent was actually given an opportunity to provide a responding supervisor with information about what had occurred before he chose to leave the scene. Instead, Respondent chose not to say anything and pretended that he was just another curious bystander. Respondent had knowledge of what occurred just prior to the assault on Blanco in the vestibule and who the initial aggressors in the situation were. Nonetheless, he chose to stand by and watch as Blanco was arrested. It is quite clear that Respondent’s failure to inform responding officers what he had observed was an attempt to protect his girlfriend, Person A, her sister, Person B, and her boyfriend, Person C. However, as a member of the service, Respondent had a responsibility to share what he had witnessed with the responding officers on the scene. Accordingly, Respondent is found Guilty of Specification No. 2.

Specification No. 3

Respondent is charged with failing and neglecting to request the response of the patrol supervisor. Respondent claimed that he was not involved in an unusual police occurrence and therefore was not required to request the response of the patrol supervisor to the scene. However, as discussed above, Respondent was involved, to some extent, in the dispute between Blanco, Person A, Person B, and Person C. Further, Respondent was most certainly a witness to part of what occurred on that day and he was therefore

required by the Patrol Guide to request the response of the patrol supervisor to the scene. Accordingly, Respondent is found Guilty of Specification No. 3.

Specification No. 4

Respondent is charged with providing misleading statements during the course of an official Department interview. Sergeant Alexander Crouch of the Transit Bureau Investigations Unit testified that he was assigned an investigation related to Respondent in July 2012. He testified that Blanco provided a copy of the surveillance footage to his unit and informed him that Respondent was present at the location when the incident occurred. (Tr. 64). On November 28, 2012, Crouch interviewed Respondent during his official Department interview regarding the incident. He also interviewed Lieutenant Giblin, one of the responding supervisors on the scene. Giblin stated in his interview with Crouch that he did not recall whether or not anybody identified himself or herself as a member of the service or indicated that they were a witness in the case. Giblin also stated in his interview that he did not recognize Respondent when showed a photograph. (Tr. 72). Sergeant Angelo Rosario stated during his interview with Crouch that no one approached him to identify himself or herself as a member of the service on the day of the incident and he did not recognize Respondent when showed a photograph. (Tr. 74).

Crouch testified that Respondent's initial story of what occurred on the date of the incident was that:

"there was a verbal dispute between Ms. Blanco and his girlfriend, and he asked his girlfriend to stop, at which time she continued to argue with her, with Ms. Blanco, and he decided to leave the location. He went to get something to drink, and when he came back to the location he observed that there was an ambulance and that something else had taken place." (Tr. 78)

Respondent was then given the opportunity to review a portion of the video with his attorney and his version of events changed somewhat. Respondent admitted that he was present at the scene for longer than he initially had indicated. After reviewing the video footage Respondent elaborated by saying:

"...when the sister came down, I also spoke to the sister also, but they did not listen and as I said, they went inside the building. I didn't go inside the building at this point in time. So therefore they were inside the building and I saw, like, the sister was about to argue. I don't know exactly what she was going to do. That's when I left. I didn't see anything that happened so..." (DX1, 12)

Despite being confronted with video footage during his official Department interview, Respondent failed to candidly describe what happened to the investigators. He also continued to deny being present before Blanco was arrested, claiming only to have arrived on the scene after she was placed in the RMP, a claim proved to be false by the video footage. (DX1, 19).

Prior to being made aware that video footage of the incident existed, Respondent admitted to having only a cursory recollection of what occurred that day. However, after being told that the video footage existed and viewing it in part alongside his attorney, he continued to withhold information regarding the extent of his involvement in the incident. It is unclear why Respondent continued to withhold information, particularly because the video footage so clearly memorializes the incident. It was only on cross-examination by the Assistant Department Advocate at trial that Respondent admitted the extent to which he was involved. This Court finds Respondent's continued dishonesty deeply troubling and deleterious to this Department. Accordingly, Respondent is found Guilty of Specification No. 4.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on January 10, 2007. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has been found guilty of failing to identify himself as a member of the service at the scene of a physical dispute, failing to inform responding officers of what he observed, failing to request the response of a patrol supervisor at the scene of an unusual police occurrence, and making misleading statements during an official Department interview. The Assistant Department Advocate recommended a penalty of 45 vacation days and one year dismissal probation for the misconduct alleged in the four specifications. Based on the seriousness of Respondent's misconduct, this Court agrees. I therefore recommend that Respondent be DISMISSED from the New York City Police Department but that his dismissal be held in abeyance for a period of one year pursuant to Section 14-115 (d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. It is also recommended that Respondent forfeit a penalty of 45 vacation days.

APPROVED

SEP 02 2015
William J. Bratton
WILLIAM J. BRATTON
POLICE COMMISSIONER

Respectfully submitted,

Claudia Daniels-DePeyster
Daniels-DePeyster

Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials

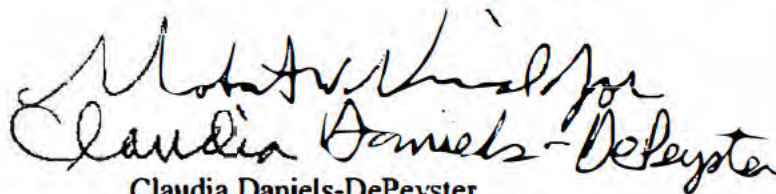
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER JOSE JOSEPH
TAX REGISTRY NO. 943113
DISCIPLINARY CASE NO. 2012-8604

Respondent was appointed to the Department on January 10, 2007. In 2014, Respondent received an overall rating of 4.0 "Highly Competent" on his annual performance evaluation. He was rated 3.5 "Highly Competent/Competent" in 2013 and 3.0 "Competent" in 2012. [REDACTED]
[REDACTED]
[REDACTED]

Respondent has no prior disciplinary history and has received no medals or commendations.

For your consideration.


Claudia Daniels-DePeyster

Assistant Deputy Commissioner Trials